

2:00 PM LINE 4

25-CIV-05413

DANIELLE DUBOIS VS. ALLYSON LYNN RANIER

DANIELLE DUBOIS
ALLYSON LYNN RANIER

UN HUI NAM
SUSAN H HOBSON

Defendant's Motion to Strike Portions of Complaint

TENTATIVE RULING:

For the reasons stated below, Defendant Allyson Lynn Ranier's Motion to Strike Portions of Plaintiff Danielle Dubois's First Amended Complaint is **DENIED**.

Defendant Allyson Lynn Ranier ("Defendant") moves to strike Plaintiff Danielle Dubois's ("Plaintiff") prayer for punitive damages from the First Amended Complaint ("FAC").

MEET AND CONFER

Code of Civil Procedure section 435.5 requires the moving party, before filing a motion to strike, to meet and confer in person, by telephone, or by videoconference with the party who filed the pleading for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion. (Code Civ. Proc., § 435.5, subd. (a).)

Defendant's counsel states that the parties agreed to discuss the punitive-damages allegations on January 20, 2026, and that Plaintiff's counsel did not agree to withdraw the allegations or prayer for punitive damages. Although counsel's declaration does not clearly establish that the contemplated discussion actually occurred in the manner required by section 435.5, an insufficient meet-and-confer process is not grounds to grant or deny a motion to strike. (Code Civ. Proc., § 435.5, subd. (a)(4).) The Court therefore proceeds to the merits.

PUNITIVE DAMAGES

Civil Code section 3294 provides that, "[i]n an action for the breach of an obligation not arising from contract," a plaintiff may recover punitive damages upon proof by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).)

"Malice" means either "conduct which is intended by the defendant to cause injury to the plaintiff" or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) Where there is no allegation that the defendant intended to cause injury, conscious disregard alone is insufficient; the conduct must also be despicable. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

“Despicable conduct” refers to circumstances that are sufficiently reprehensible to warrant the imposition of punitive damages. Thus, mere negligence, gross negligence, or recklessness does not, without more, establish malice within the meaning of section 3294. Rather, the pleaded facts must support a reasonable inference that the defendant engaged in despicable conduct with knowledge of the probable dangerous consequences and willfully failed to avoid those consequences. (See *College Hospital, Inc. v. Superior Court*, supra, 8 Cal.4th at p. 725; *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895–896.)

At the pleading stage, however, the plaintiff need not rely upon conclusory labels such as “willful,” “fraudulent,” “malicious,” or “oppressive” if the complaint alleges facts sufficient to apprise the defendant of the factual basis upon which punitive damages are sought and permits the appropriate legal conclusions to be drawn from those facts. (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

Here, Plaintiff alleges substantially more than an isolated instance in which Defendant negligently failed to control her dog. The FAC alleges that Defendant received warnings on four separate occasions beginning in 2019 concerning aggressive behavior by dogs under her care. (FAC, ¶ 33.) It further alleges prior incidents involving other dogs owned or controlled by Defendant. (FAC, ¶¶ 34–48.)

More significantly, the FAC alleges that in March 2025, only approximately three months before the incident at issue here, Henry attacked another dog at the same school playground after Defendant allowed Henry to be off leash. (FAC, ¶¶ 50–55.) Plaintiff further alleges that Defendant admitted to a neighbor that Henry was aggressive, could not be around other dogs, and needed to be muzzled when other dogs were present at the playground. (FAC, ¶ 56.)

Despite this alleged knowledge, Plaintiff alleges that Defendant again allowed Henry to be off leash at the same playground on June 10, 2025, while other dogs were present. According to the FAC, Henry attacked Plaintiff’s dog, Lucy, without provocation and thereafter bit and injured Plaintiff when she attempted to intervene. Plaintiff alleges that Defendant approached with a lack of urgency despite Plaintiff’s cries for assistance.

Taken as true for purposes of the present pleading motion and considered collectively, these allegations are sufficient to support a reasonable inference that Defendant knew Henry posed a significant danger to other dogs and persons attempting to intervene in an attack, yet deliberately failed to take measures—including restraining or muzzling Henry—to avoid the known danger. The alleged prior attack by the same dog at the same location, together with Defendant’s alleged acknowledgment that Henry was aggressive and needed to be muzzled around other dogs, distinguishes the allegations from a claim based merely upon negligence or an unforeseen dog attack.

The allegations are therefore sufficient at the pleading stage to support an inference that Defendant engaged in **despicable conduct with a willful and conscious disregard for the rights or safety of others** within the meaning of Civil Code section 3294, subdivision (c)(1). Whether Plaintiff ultimately can establish those allegations and satisfy section 3294’s clear-and-convincing-evidence standard presents an evidentiary question for a later stage of the proceedings and is not appropriately determined on this motion to strike.

Defendant also argues that allegations concerning prior incidents involving other animals are inadmissible under Evidence Code sections 352 and 1101. The Court need not determine the ultimate admissibility of such evidence at the pleading stage. The issue presented by this motion is whether the factual allegations of the

FAC, assumed to be true, sufficiently plead a basis for punitive damages. The admissibility of evidence offered to prove those allegations may be addressed at the appropriate stage of the proceedings.

Accordingly, Defendant's Motion to Strike Plaintiff's prayer for punitive damages is **DENIED**.

Defendant shall file and serve an answer to the FAC within **10 days after service of written notice of this order**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare, for the Court's signature, a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The parties are directed to revised Local Rule 3.403(b)(iv), effective January 1, 2024, concerning the wording of proposed orders.

**UD LAW AND MOTION CALENDAR
THURSDAY, AUGUST 20, 2026**

2:00 PM LINE 5

26-UDL-00369

SIU LAN CHAN VS. ANTHONY RENE COLON, JR, ET AL

**SIU LAN CHAN
ANTHONY RENE COLON**

**JOANNA KOZUBAL
PRO SE**

Plaintiff's Motion to Enforce Settlement Agreement Per CCP 664.6 and for Judgment Pursuant to Stipulation

TENTATIVE RULING:

Plaintiff Siu Lan Chan's Motion to Enter Judgment Against Defendant Anthony Rene Colon is **DENIED**. The Stipulation does not authorize entry of judgment for the \$21,600 principal balance of unpaid rent sought by Plaintiff, and the Court may not add that substantive term to the parties' agreement under Code of Civil Procedure section 664.6. Plaintiff has also failed to present sufficient evidence establishing the amount of recoverable daily damages and costs. Plaintiff may appear at the hearing and make an offer of proof concerning whether the evidentiary deficiencies relating solely to daily damages and costs can be cured by supplemental declarations. The contractual deficiency concerning the requested principal balance is not subject to cure by supplemental evidence.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare, for the Court's signature, a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The parties are directed to revised Local Rule 3.403(b)(iv), effective January 1, 2024, concerning the wording of proposed orders.

Posted: 3:00 P.M.
